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Case Name: *Jose Torres Garcia v. Gardner Family Health Network, Inc. et al.*

Case No.: 24CV443624

Before the court are two competing discovery motions: plaintiff Jose Torres Garcia's motion for a protective order to limit the number of special interrogatories, and defendants Gardner Family Health Network, Inc ("Gardner") and Maribel Montanez's (collectively, "Defendants") motion to compel responses to special interrogatories and further responses to form interrogatories. The protective order motion was originally noticed for a hearing on May 27, 2025, and the motion to compel was originally noticed for a hearing on July 1, 2025. At a case management conference in late February, the court decided that it would hear the motions together on June 12, 2025, given the obvious overlap between them.

The court addresses the protective order motion first.

1. Motion for Protective Order to Limit the Number of Special Interrogatories

Defendants have propounded 526 special interrogatories on Torres Garcia—two sets of 263 identical interrogatories by each of Gardner and Montanez. Torres Garcia argues that the burden or expense of responding to this many special interrogatories "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020, subd. (a).) The court tends to agree, although the court finds that both sides' actions and arguments related to this discovery dispute leave much to be desired.

This is not a complex case. This is a single-employee employment dispute. It is difficult to conceive of any set of circumstances under which two sets of 263 special interrogatories could be considered a reasonable number, given that the statutorily presumptive limit for an unlimited civil case is 35. Of course, a party may go beyond the presumptive limit if there is good cause to do so, but regardless of the grounds here, they do not support going more than seven and a half times beyond a typical civil case. Although the court agrees with Defendants that the assertion of 17 causes of action in the complaint appears to be excessive, even that does not justify this many special interrogatories. These special interrogatories were apparently created by mechanically going through each factual allegation or phrase in the complaint and then asking the same three questions about that allegation or phrase. Although a party is certainly entitled to ask contention interrogatories, the foregoing rote approach does not reflect a judicious and well-thought-out use of the discovery tools at a party's disposal. These special interrogatories could have been generated by a machine rather than a human being.

In addition, there is no apparent reason why Montanez would need to propound exactly the same interrogatories as Gardner on Torres Garcia. Although Defendants are correct that the causes of action that have been asserted against each of them do not necessarily constrain the scope of the interrogatories that they may propound against a plaintiff (contrary to Torres Garcia's argument here), that does not mean that they need to duplicate the same interrogatories. Doing so is unnecessarily wasteful and supports the perception that Defendants are trying to overwhelm Torres Garcia with volume rather than trying to advance the truth-seeking purpose of written discovery.

At the same time, the court takes issue with Torres Garcia's failure to respond to any of these interrogatories in a timely manner. Normally, if a party objects to the number of interrogatories propounded by an opponent, that party must still respond to at least the first 35. As Defendants rightly note: "[I]f Plaintiff objected to the number of Special Interrogatories made, that does not mean Plaintiff can wholly disregard [his] duty to respond to discovery – at a minimum, he is required to respond to the first 35 interrogatories in each set." (Opposition to Motion for Protective Order, p. 13:17-20.) Moreover, Defendants also correctly note—and Torres Garcia readily admits—that he missed the original deadline for responding to these interrogatories and for filing the present motion. Thus, Torres Garcia's motion is both tardy and indicative of a refusal to comply in good faith with his discovery obligations.

Because of both sides' unhelpful "all or nothing" approach to this discovery, as well as in their briefing, the court is ill-suited to formulating the appropriate number of interrogatories for this case on its own. Nevertheless, the court sees in the meet-and-confer correspondence that on May 27, 2025, Torres Garcia agreed to respond substantively to a set of "166 Special Interrogatories propounded by Defendant Gardner Health" as a compromise position. (Though it also appears that the parties could not agree to a compromise regarding any of Montanez's special interrogatories.) (Declaration of Elen Martirosyan in Opposition to Motion to Compel, Exhibits D & E.) Accordingly, the court hereby orders Torres Garcia to respond substantively to the modified proposed set of 166 special interrogatories from Gardner *within 20 days of this order*. As for Montanez, the court orders Defendants to re-propound no more than 35 *non-duplicative* special interrogatories on Torres Garcia, to which Torres Garcia will then provide timely, substantive responses.

The motion for protective order is GRANTED IN PART and DENIED IN PART. The court DENIES Defendants' request for \$2,080.00 in monetary sanctions.

2. Motion to Compel Responses to Special Interrogatories

For the same reasons just stated, the court GRANTS IN PART and DENIES IN PART Defendants' competing motion to compel. The court DENIES both sides' requests for monetary sanctions.

3. Motion to Compel Further Responses to Form Interrogatories

In their motion to compel, Defendants also seek further responses to employment form interrogatories Nos. 200.1, 200.3, 200.4, 202.1, 203.1, 204.6, 207.1, 207.2, and 217.1 from Torres Garcia. The court addresses these items as follows:

No. 200.1: Torres Garcia's response is code compliant and sufficient. DENIED.

No. 200.3: The response "Unknown to Plaintiff" is insufficient. The interrogatory asks for Torres Garcia's position or contention, and he must provide it. In addition, he must identify any documents that are known to him, unless he does not know of a single document. Torres Garcia must supplement his response with 20 days of this order. GRANTED.

No. 200.4: Torres Garcia's response is code compliant and sufficient. DENIED.

No. 207.1: The court agrees with Torres Garcia that this form interrogatory was designed to be propounded on employers, not employees. DENIED.

Nos 202.1, 203.1, 204.6, 207.2, and 217.1: The court disagrees with Defendants that Torres Garcia is obligated to provide contact information for Gardner's own employees (or former employees). DENIED.

In short, the motion is GRANTED IN SMALL PART and DENIED IN LARGE PART as to the form interrogatories. Again, the court DENIES both sides' requests for monetary sanctions.

It is so ordered.

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Calendar Line 5

Case Name: *Jonathan Maldonado v. Aniceto Alva*

Case No.: 21CV381717

This is a motion for attorney's fees by defendant Aniceto Alva. Plaintiff Jonathan Maldonado opposes and objects to the motion on the ground that his counsel was never properly served. Although there is a proof of service in the file (signed, somewhat unusually, by Alva's counsel himself), Maldonado's counsel submits a declaration stating that their office never received the moving papers, by either regular mail or email. Maldonado therefore requests a continuance "of at least 16 court days" to respond substantively to the motion.

The court has not received a timely reply from Alva.

Rather than try to resolve this factual disagreement between counsel, the court will CONTINUE this motion to July 29, 2025 at 9:00 a.m. in Department 10. Maldonado must file a substantive response to the motion by July 16, 2025.

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